

Affidavit

I am the complainant / authorised representative of the complainant in the above case and am fully acquainted with the facts and circumstances of the case. I am competent and authorised to swear to this affidavit.

The accused issued the above cheque in discharge of a legally enforceable debt or liability. It has been dishonoured due to insufficiency of funds. A demand notice has been issued to the accused, but she/ he has failed to make the payment due under the cheque. All other requirements under Section 138 of the Negotiable Instruments Act, 1881 have been complied with.

I confirm that the demand notice was served on the last known correct address of the accused(s).

In accordance with Section 225 of the Bharatiya Nagarik Suraksha Sanhita, 2023, I confirm that there is sufficient ground for proceeding against the accused.

In accordance with Section 223 and other relevant provisions of the Bharatiya Nagarik Suraksha Sanhita, 2023, I confirm that the contents of this complaint are true and correct to the best of my knowledge, belief and information.

The physical or electronic records of the documents etc. produced by me with this complaint are in my lawful and proper custody and possession.

It is therefore humbly prayed that this Hon'ble Court may be pleased to take cognizance of the offence committed by the accused, and issue process to the accused.

Affidavit for appearing as party in person

I request permission to appear and argue in person, as a party in person.

By educational qualifications I am a _____.

I have not engaged any advocate for this case.

I give an undertaking that I will maintain decorum of the Court and will not use or express objectionable and unparliamentary language or behavior during the course of hearing in the Court premises or in any pleadings.

Kindly grant me permission to appear in person and conduct the proceedings.

Affidavit for unavailability of accused's contact details

I confirm that I don't have any knowledge of the electronic contact details of the accused. I confirm that I am unable to locate these contact details with reasonable effort.

Interim Relief

It is, therefore, most respectfully prayed that this Hon'ble Court may be pleased to:

Direct the Accused to pay interim compensation to the Complainant under Section 143A of the Negotiable Instruments Act, 1881, during the pendency of the trial, of a sum not exceeding 20% of the cheque amount i.e. Rs. _____, within 60 days of the order or such further period not exceeding 30 days as this Hon'ble Court may allow for sufficient cause shown.

Final Relief

It is most respectfully prayed that this Hon'ble Court may be pleased to:

- (a) Take cognizance of the offence committed by the Accused under Section 138 of the Negotiable Instruments Act, 1881;
- (b) Issue process/summons against the Accused and direct him/her to appear before this Hon'ble Court;
- (c) Upon trial, convict and sentence the Accused under Section 138 of the Negotiable Instruments Act, 1881, to imprisonment for a term which may extend to two years, or with fine which may extend to twice the amount of the cheque, or with both;
- (d) Direct the Accused to pay compensation to the Complainant under Section 395 of the Bharatiya Nagarik Suraksha Sanhita, 2023, equivalent to the cheque amount along with interest _____% per annum from the date of dishonour;
- (e) Grant such other and further relief(s) as this Hon'ble Court may deem fit and proper in the facts and circumstances of the case.